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No. _____

95-57587
(2)
ORIGINAL

IN THE
SUPREME COURT OF THE UNITED STATES
October Term, 1996

HIGHBERGER, KAKITA, SPENCER & TUNER MAY CT., L. Shieh,

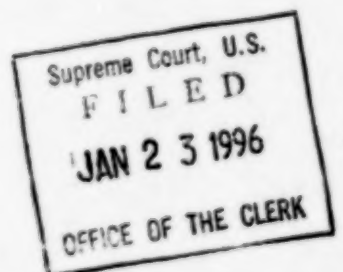
Petitioners,

vs.

EDWARD Y. KAKITA, et al.,

Respondents.

95-55563 ✓
CV-93-06547 KN



MOTION FOR LEAVE TO PROCEED IN FORMA PAUPERIS

The petitioner, L. Shieh, asks leave to file the attached petition for a writ of certiorari without prepayment of costs and to proceed in forma pauperis. Petitioner has previously been granted leave to so proceed in L. Shieh v. David Ebershoff, et al, S 038440 by the Supreme Court of the State of California. Petitioner's affidavit/declaration in support of this motion is attached hereto.

ORIGINAL

72 pp

Dated: January 19, 1996

95-7587

Respectfully submitted,

Shieh Liang-Houh
Shieh Liang-Houh

FIDAVIT OR DECLARATION
IN SUPPORT OF MOTION FOR LEAVE TO PROCEED *IN FORMA PAUPERIS*

I, L. Shieh, am the petitioner in the above-entitled case. In support of my motion to proceed without being required to prepay fees, costs or give security therefor, I state that because of my poverty I am unable to pay the costs of this case or to give security therefor; and I believe I am entitled to redress.

I further swear that the responses I have made to the questions and instructions below relating to my ability to pay the cost of proceeding in this Court are true.

1. Are you presently employed? Yes ☐ No ☒
a. If the answer is yes, state the amount of your salary or wages per month and give the name and address of your employer.

b. If the answer is no, state the date of your last employment and the amount of salary or wages per month which you received. 4/89; approximately \$7,500.00 per month (gross income)

2. Have you received within the past twelve months any income from a business, profession or other form of self-employment, or in the form of rent payments, interest, dividends, or other sources? Yes ☐ No ☒

a. If the answer is yes, describe each source of income and state the amount received from each during the past twelve months.

3. Do you own any cash or have a checking or savings account? Yes ☐ No ☒

a. If the answer is yes, state the total value of the items owned.

4. Do you own any real estate, stocks, bonds, notes, automobiles, or other valuable property (excluding ordinary household furnishings and clothing) Yes ☐ No ☒

a. If the answer is yes, describe the property and state its approximate value.

5. List the persons who are dependent upon you for support and state your relationship to those persons.

I declare under penalty of perjury that the foregoing is true and correct.

Executed on: January 19 1996.

Shieh

(Signature)

No. _____

IN THE
SUPREME COURT OF THE UNITED STATES
October Term, 1996

HIGHBERGER, KAKITA, SPENCER & TUNER MAF CT., L. Shieh,

Petitioners,

vs.

EDWARD Y. KAKITA, Vanio H. Spencer, et al.,

Respondents.

PETITIONER FOR WRIT OF CERTIORARI TO THE
UNITED STATES COURT OF APPEAL FOR THE NINTH CIRCUIT, THE
UNITED STATES DISTRICT COURT FOR THE CENTRAL DISTRICT OF
CALIFORNIA, THE CALIFORNIA COURT OF APPEALS AND CALIFORNIA
SUPERIOR COURT

PETITION FOR WRIT OF CERTIORARI

95-55563
cv 93-6547KN (SHx)

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QUESTIONS PRESENTED

1. Whether the Ninth Cir. and all California state courts which absolutely, completely, permanently, unlimitedly and in fact unconditionally prohibited Petitioner and all of petitioners' past, current and future lawyers from filing any and all papers with the above courts is constitutional and is a violation of the provisions of the Treaty of Friendship, Commerce And Navigation between the Republic of China and the United States of American and thus is also unconstitutional, which has given rise to the disagreements among the lower courts, among other issues: (1) 1st Cir., Sire v. Gabriel, 748 F.2d 49 (1st Circuit 1984) (holding that "We stress that where access to the courts is concerned, an injunction should be drawn as narrowly as possible"); (2) 3rd Circuit: Castro v. The United States of America 775 F.2d 399, (2nd Circuit 1985) (holding that "The court of appeals narrowly tailored the injunction to closely fit the specific vice encountered.") see also Brow v. Farrelly 994 F.2d. 1027, (3rd Circuit 1993)), Brow v. Farrelly 994 F.2d. 1027, (3rd Circuit 1993) (holding that "The broad scope of the District court's power is limited by two fundamental tenets of our legal system -- the litigant's right to due process and access to the courts"), In re Oliver 682 F.2d 443, (3rd Circuit 1982) (holding that imposing an injunction "is an extreme remedy, and should be used in exigent circumstances"), In re Oliver 682 F.2d 443, (3rd Circuit 1982) (holding that "Litigiousness alone will not support an injunction restricting litigant's filing activities"); (3). 2nd & 10th Circuits, Castro v. United States of America 775 F.2d 399,

(2nd Circuit 1985) (holding that "If an injunction against future litigation issued under 28 U.S.C.A. 1651(a) were couched in overly broad terms, this impermissible infringes upon a litigator's right of access to the courts") see also Tripati v. Beaman 878 F.2d 351, (10th Circuit 1989)); (4). 4th & 11th Circuits, Robinson v. Marion 879 F.2d 863, (4th Circuit 1989) (holding that "A court imposing such an injunction must be careful not to order conditions that effectively deny access to the courts", see also Procup v. Strickland 792 F.2d 1069 (11th Circuit 1986)); (5). D.C. Circuit, Urban v. United Nations 768 F.2d 1497, 1500 (D.C. Circuit 1985) (holding that "A court must take great care not to unduly impair a litigant's constitutional right of access to the courts"); (6) 5th Cir., Harrelson v. the United States, 613 F.2d 114 (5th Circuit 1980) (holding that "Orders enjoining future lawsuits are generally unnecessary because the doctrine of res judicata or collateral estoppel usually suffice to protect defendants from repetitious lawsuits"); and (6) 2d Cir., N.Y. Chinese TV Programs v. U.E. Enterprises, 954 F.2d 847, 852 (holding that "the FCN treaty remains a valid and enforceable treaty" between the Republic of China and the United States of America)?

2. Whether the subsequent criminal indictment and criminal prosecution of the federal judge David Kenyon, Beezer, Thompson, and T. G. Nelson, as well as state judges Vaino Hassan Spencer, Edward Y. Kakita, Paul A. Turner, Orville A. Armstrong, et al for bribery, kidnapping for ransoms and bribes, corruption, collusion, perjury, forgery, et al constitute a "new argument" and/or "new fact" for motion

for reconsideration of the unserved motion for summary judgment and the unserved order of dismissal with prejudice, which has given rise to the disagreement among the lower courts and this court: (1) 3d Cir., Harsco Corp. v. Zlotnicki (3d., Cir., 1985) 779 F. 2d 906 (holding that the court must not refuse to consider the subsequent evidence not available prior to the summary judgment); (2) 8th Cir., Bonner v. Circuit Court (8th Cir., 1975) 526 F 2d 1331, 1334; and (3) USSC, United States v. Allen, 542 F 2d 633 (1976), "The Court, however, has recognized that a judge is not absolutely immune from criminal liability, Ex Parte Virginia, 100 U.S. 339, 348-349, 25 L.Ed. 676 (1880), or from a suit for prospective injunctive relief, Pulliam v. Allen, 466 U.S. 522, 536-543, 104 S.Ct. 1970, 1977-1982, 80 L.Ed.2d 565 (1983), or from a suit for attorney's fees authorized by statute, id., at 543-544, 104 S.Ct., at 1981-1982." MIRELES v. WACO 112 S.Ct. 286, 1991.

3. Whether the district court has jurisdiction to issue declaratory and injunctive relief against the California court of appeals' judgments which were rendered without jurisdiction and/or exceeding jurisdiction, and which has given rise to the disagreements among the lower courts and this court: (1) Slavin v. Curry, 574 F.2d 1256, 1261 (1978), (2) Heimbach v. Village of Lyons, 597 F.2d 347 (2d Cir., 1979); and (3) USSC, "from a suit for prospective injunctive relief, Pulliam v. Allen, 466 U.S. 522, 536-543, 104 S.Ct. 1970, 1977-1982, 80 L.Ed.2d 565 (1983)." MIRELES v. WACO 112 S.Ct. 286, 1991.

4. Whether petitioner's and all of his lawyers' right to

neutral and detached judges under the U.S. Constitution and the Treaty Between the ROC and USA is violated, where state judges Vaino Hassan Spencer, Edward Y. Kakita, Paul A. Turner, Jerold A Krieger, et al used California courts as instrumentalities for bribery, corruption, collusion, forgery, burglary and perjury and for the extortion against petitioner and his lawyers for \$1 million, where the federal judges David Kenyon, Beezer, Thompson and T.G. Nelson, et al used their courts to cover up their bribery, corruption and collusion, where they were indicted and prosecuted and where they were disqualified, which has given rise to the disagreements of the lower courts and this court: (1) FCN Treaty: "The nationals, corporations and associations of either High Contracting Party ... shall be permitted to exercise all these rights and privileges, ... on terms no less favorable than the terms which are or may hereafter be accorded to the nationals, corporations and associations of such other High Contracting Party and no less favorable than are or may hereafter be accorded to the nationals, corporations and associations of any third country"; (2) USSC, Concrete Pipe & Const. Laborers Pen. Tr., 113 S. Ct 2264, 2277 (1993) ("due process requires a 'neutral and detached judge in the first instance' ... one is entitled as a matter of due process of law to an adjudicator who is not in a situation 'which would offer a possible temptation to the average man as a judge ... which might lead him not to hold the balance nice, clear and true'; and (3) other cases.

5. Whether, after commission of bribery, corruption, collusion, et al, judges Beezer, Thompson and Nelson violated petitioners' due process right as protected by the US constitution and

FCN Treaty by summarily affirming all of the USDC's decisions without notice and opportunity to be heard, which has risen to the disagreements among the lower courts.

ALL PARTIES TO THE PROCEEDING

PETITIONERS:

Highberger, Kakita, Spencer & Turner MAF Corp¹. ("HKST"), is currently known as "Highberger, Kakita, Spencer, Turner, Millard, Kaufman, Coskey, Davies, Gadbois & Kenyon MAF Ct¹.", and is formerly known as "Say & Say Import-Export Corp." This corporation has no parent and no subsidiary. This company is "controlled solely" by defendants Spencer and Highberger, based on the implication of defendant Spencer's own published decisions.

L. Shieh is an individual.

RESPONDENTS:

Defendants Edward Y. Kakita, Vanio Hassan Spencer, judge Ortega, and judge Miriam A. Vogel are purported judges of California, acting as "puppets" of the large, wealthy and influential Caucasian law firms, as described below by their own admission. Defendants used the California courts as instrumentalities for bribery, corruption, collusion and for commission of other crimes as alleged by HKST.

¹ This name is used since October, 1994, through the unanimous consent of the meetings of shareholder and director, and through the filing of the first amended and restated articles of incorporation with the California Secretary of State. The California Secretary of State had endorsed the articles.

² This name is used since April 21, 1995, through the unanimous consent of the meetings of shareholder and director, and through the filing of the second amended and restated articles of incorporation with the California Secretary of State.

No. _____

**IN THE
SUPREME COURT OF THE UNITED STATES
October Term, 1996**

HIGHBERGER, KAKITA, SPENCER & TUNER MAF CT., L. Shieh,
Petitioners,

vs.

EDWARD Y. KAKITA, et al.,

Respondents.

95-55563
CV93-6547KN (SHX)

**PETITIONER FOR WRIT OF CERTIORARI TO THE
UNITED STATES COURT OF APPEAL FOR THE NINTH CIRCUIT AND THE
UNITED STATES DISTRICT COURT FOR THE CENTRAL DISTRICT OF
CALIFORNIA AND ALL LEVELS OF THE CALIFORNIA COURTS**

To the Honorable William Rehnquist the Chief Justice and
Associate Justices of the Supreme Court of the United States:

Petitioners Highberger, Kakita, Spencer & Turner MAF Ct., and
L. Shieh, respectfully pray that a writ of certiorari issue to review
the judgments and opinions of the United States Court of Appeals for the
Ninth Circuit, the United States District Court for the Central District
of California, the California Court of Appeals and the California
Superior Court

TABLE OF CONTENTS

OPINION BELOW	1
JURISDICTION	1
CONSTITUTIONAL AND STATUTORY PROVISIONS INVOLVED.....	1
STATEMENT OF CASE	4
I. BEFORE THE CALIFORNIA JUDGES, PETITIONERS AND THEIR LAWYERS ARE LIKE "A JEW IN NAZI GERMANY".....	4
II. AT LEAST THREE CALIFORNIA JUDGES ADMITTED THAT THEY ARE MERELY PUPPETS OF THEIR BOSSES.....	5
III. THE HISTORY OF BRIBERY, CORRUPTION, COLLUSION, PERJURY, FORGERY OF THE CALIFORNIA JUDGES AND FEDERAL JUDGES IN CALIFORNIA.....	7
REASONS FOR GRANTING THE WRIT.....	10
I. THE COMPLETE, PERMANENT AND UNLIMITED PROHIBITION OF PETITIONERS AND THEIR LAWYERS FROM FILING ANY THING CONFLICT WITH THE DECISIONS OF ALL CIRCUITS, VIOLATES THE CONSTITUTION AND TREATY.....	11
A. CONFLICT WITH ALL DECISIONS OF ALL CIRCUITS....	11
B. VIOLATION OF THE U.S. CONSTITUTION.....	13
1. First Amendment Right.....	14
2. Right to Counsel.....	14
3. Right to Access to the Court	15
4. Right to Neutral and Detached Judges.....	16
C. VIOLATION OF THE FCN TREATY.....	21
II. THE SUBSEQUENT CRIMINAL INDICTMENT AND CRIMINAL PROSECUTION OF THE STATE JUDGES AND FEDERAL JUDGES JUSTIFY THE MOTION FOR RECONSIDERATION OF AN UNSERVED MOTION FOR SUMMARY JUDGMENT AND UNSERVED ORDER DISMISSING THE CASES.....	23
III. THE DISTRICT COURT HAS JURISDICTION FOR DECLARATORY AND INJUNCTIVE RELIEFS, AMONG OTHERS, FOR JUDGMENTS RENDERED WITHOUT JURISDICTION.....	25
A. Orders Issued Without Jurisdiction.....	26

B. Declaratory Relief & Injunctive Relief.....	27
--	----

IV. CRIMINAL INDICTMENT AND CRIMINAL PROSECUTION ARE SELF-EVIDENT THAT STATE AND FEDERAL JUDGES ARE NOT NEUTRAL AND DETACHED.....	28
---	----

V. SUMMARY AFFIRMATION OF ALL USDC'S DECISIONS, AFTER COMMISSION OF BRIBERY, CORRUPTION, COLLUSION, ET AL., VIOLATES U.S. CONSTITUTION AND FCN TREATY	31
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CONCLUSION.....	32
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INDEX TO APPENDICES

- Appendix A. The decision of the Court of Appeal for the Ninth Circuit, dated October 27, 1995.
- Appendix B. The decision of the district court, dated March 3, 1995.
- Appendix C. Criminal Indictment and Criminal Prosecution.

TABLE OF AUTHORITIES

CASES

<u>Agricultural Labor v. Tex-Cal</u> (1987) 43 C. 3d 696, 739 P.2d 140, 238 C.R. 780.....	26
<u>Alzua v. Johnson</u> , 231 U.S. 106, 110-111 (34 S.Ct. 27, 28-29, 58 L. Ed. 142) (1913).....	25
<u>American Trust Company v. Smyth</u> (1957) 247 F. 2d. 149.....	23
<u>Anderson v. Sheppard</u> , 856 F. 2d 746 (1988).....	16
<u>Aurelio Fregoso Jara v. Municipal Court of San Antonio Judicial District</u> (1977) 137 Cal. 533, 68 Cal. App. 3d 673..	15
<u>Berger v. United States</u> (1921) 255 US 22	18
<u>Boddie v. Connecticut</u> , 371 (1971).....	14,15
<u>Bonner v. Circuit Court</u> (8th Cir., 1975) 526 F2d 1331, 1334.....	24,25
<u>Bradley v. Fisher</u> , 13 Wall., at 351.....	27,30
<u>Bounds v. Smith</u> 430 U.S. 817, 821, 97 S. Ct. 1491, 1494, 52 L.Ed. 2d. 72 (1977).....	15
<u>Bounds, Correction Commissioner, et al. v. Smith et al.</u> 817 (1977).....	15
<u>Brow v. Farrelly</u> 994 F.2d. 1027, (3rd Circuit 1993).....	12
<u>California Motor Transport Co. v. Trucking Unlimited</u> , 510, 510-511, 513 (1972).....	14,15
<u>Castro v. The United States of America</u> 775 F.2d 399, (2nd Circuit 1985).....	12
<u>Concrete Pipe v. Pension Trust</u> 113 S.Ct. 2264, 12 L.Ed.2d 539, 560(1993).....	29
<u>Davis v. Board of School Commissioners</u> (5th Cir. 1975) 571 F2d 1044, 1051.....	19
<u>Dennis v. Sparks</u> , 449 U.S. 24, 29, 101 S.Ct. 183, 187 (1980).....	25
<u>Dr. Ing. H.C.F. Porsche v. Superior Court</u> , 177 C.R. 155, 156 Fn. 1 (3d. Dist., 1981).....	23
<u>E. & J. Gallo Winery v. Gallo Cattle Co.</u> (9th Cir. 1992) 955 F2d 1327, 1343.....	20

<u>Ex Parte Virginia</u> , 100 U.S. 339, 348-349, 25 L.Ed. 676 (1880).....	24
<u>Fuentes v. Shevin</u> (1972) 407 U.S. 67, 80, 92 S. Ct. 1983, 1984, 32 L.Ed. 2d 556, 569-570.....	14
<u>Garcia v. Pan American Airways</u> (1946) 295 N.Y. 852, 67 N.E. 2d 257; cert. den. 329 U.S. 741, 67 S. Ct. 79, 91 L. ED. 640.....	23
<u>Harrelson v. the United States</u> , 613 F.2d 114 (5th Circuit 1980).....	13
<u>Harsco Corp. v. Zlotnicki</u> (3d., Cir., 1985) 779 F. 2d 906....	24
<u>Heimback v. Village of Lyons</u> (Wayne County, N.Y.), 597 F 2d 346 (2nd Cir. 1979).....	26,27
<u>In Re Beard</u> (4th Cir. 1987) 811 F2d 818, 827.....	17
<u>In Re Continental Airlines Corp.</u> (5th Cir. 1990) 901 F2d 1259, 1262.....	18
<u>In re Oliver</u> , 682 F.2d at 446, (3rd Circuit 1982).....	12
<u>Liljeberg v. Health Services Acquisition Corp.</u> (1988) 486 US 847, 860-861.....	17
<u>Los Angeles County Bar Association v. Secretary of the State of California</u> , et al., (9th Cir. 1992) 979 F.2d 697, 705.....	15
<u>Madison Anderson v. Walter Sheppard</u> , et al., (1988) 856 F.2d 741.....	14,16
<u>Marshall v. Jerrico, Inc.</u> (1980) 446 U.S. 238; 100 S.Ct. 1610; 64 L.Ed. 2d 182.....	16
<u>Mireles v. Waco</u> 112 S.Ct. 286, 1991.....	24,25,27,28,30
<u>Mitchum v. Foster</u> , 407 U.S. 225, 239, 92 S. Ct. 2151-2160 (1972).....	11,21
<u>Payne v. Superior Court</u> (1976) 17 Cal. 3d 908, 132 Cal. Rptr. 405.....	15
<u>Preston v. United States</u> (9th Cir. 1991) 923 F2d 731, 734.....	17,19
<u>Powell v. Alabama</u> , (1932) 287 U.S. 45, 53; 53 S.Ct. 55; 77 L.Ed. 158.....	14
<u>Procup v. Strickland</u> 792 F.2d 1069 (11th Circuit 1986).....	13
<u>Roberts v. Bailar</u> (6th Cir. 1980) 625 f2d 125, 127.....	20

<u>Robinson v. Marion</u> 879 F. 2d 863, (4th Cir. 1989).....	12
<u>Sire v. Gabriel</u> , 748 F.2d 49 (1st Circuit 1984).....	11
<u>Slavin v. Curry</u> , 574 F.2d 1256, 1263 (1978).....	28
<u>Slyvester Harris v. Richard G. Harvey</u> , 605 F.2d 336 (7th Cir. 1979).....	26,31
<u>Stump v. Sparkman</u> , 435 U.S. 349, 98 S.Ct. 1099, 55 L.Ed.2d 331.....	26,27,30,31
<u>Sunray v. Federal Power</u> (1957) 353 U.S. 944, 77 S.Ct.792.....	26
<u>Supreme Court of Virginia et al. v. Consumers Union of the United States, Inc. et al.</u> 446 U.S. 719, 735, 100 S.Ct. 1967, 1976.....	27
<u>Southern Pacific Communications v. AT&T</u> , 740 F2d at 911.....	19
<u>TIMMERMAN v. BROWN Foard</u> , 528 F.2d *815 (4th Cir. 1975)....	15,27
<u>Tripati v. Beaman</u> 878 F.2d 351, (10th Circuit 1989).....	12
<u>UNITED STATES v. ALLEN</u> , 542 F,2d 633 (1976).....	14,24
<u>United States v. Ambrey DeWitt Allen</u> (1976, United States Court of Appeals, Fourth Circuit) 542 F.2d 630.....	14
<u>United States v. Conforte</u> (9th Cir. 1980) 624 f2d 869, 884....	19
<u>United States v. Murphy</u> (6th Cir. 1985) 768 F2d 1518, 1538-1539.....	18
<u>Urban v. United Nations</u> 768 F.2d 1497, 1500 (D.C. Circuit 1985).....	13
<u>Wolff</u> , 418 U.S. at 579, 94 S.Ct. at 2986.....	15

STATUTES

Bill of Rights at 138.....	14
1st Circuit Rule.....	11
2nd & 10th Circuit Rule.....	12
3rd Circuit Rule.....	12
4th & 11th Circuit Rule.....	12
5th Circuit Rule.....	13

9th Circuit Rule 3-6.....	4
D.C. Circuit Rule.....	13
18 USC §242.....	24
28 USC §455, 455 (a), 455 (b) (1), (2), (3), (4) & (5).....	16,17,18
28 USC §144	18
28 USCA 1651 (a).....	12
California Const., Article 6, §11.....	26
FCN Treaty, Article 6, §2.....	29
Title 28, U.S.C. §§1254 (1) & 2403 (a).....	1
U.S. Const., Article 6 §2.....	1,3
U.S. Const., Amendments 1, 6, & 14.....	1,2
USSC Rules 10, 10.1 (a) (b) and (c) & 29.4(b).....	1

OTHERS

Treaty of Friendship, Commerce And Navigation Between The Republic of China And The United States of America, Article 6 § 4.....	1-2,3,21,29
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[c:\lt\ka\6a\certab]

OPINION BELOW

1. The decision of the Court of Appeal for the Ninth Circuit, dated October 27, 1995 is attached in Petitioners' Appendix A.

2. The decision of the district court, dated March 3, 1995, is attached in Petitioners' Appendix B.

3. The published opinion of the California Court of Appeals, dated August 12, 1993 is published at 17 C.A. 4th 1154, 21 C.R. 2d 886 (1993).

4. The published opinion of the California Court of Appeals, dated December 16, 1993 is published at 20 C.A. 4th 1759, 25 C.R. 2d 703 (1993).

5. The published opinion of the California Court of Appeals, dated January 31, 1994 is published at 22 C.A. 4th 88, 27 CR 270 (1994).

JURISDICTION

The U.S. Court of Appeals' opinion in this matter was filed on October 27, 1995. Appendix A. This Court's jurisdiction is invoked under Title 28, U.S.C. §§1254 (1) and 2403 (a), and under the Rules of the Supreme Court of the United States ("USSC"), Rules 10.1 (a) (b) and (c), and 29.4 (b), et al.

CONSTITUTIONAL AND STATUTORY PROVISIONS INVOLVED

Amendments I, VI, and XIV to, and Article VI, Section II of, the United States Constitution, as well as the Article VI, Section 4 of

the Treaty of Friendship, Commerce And Navigation Between the Republic of China and the United States of America are attached hereto as Appendices D and E and are set forth below:

1. First Amendment: "Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof; or abridging the freedom of speech, or of the press; or the right of the people peaceably to assemble, and to petition the government for a redress of grievance."

2. Sixth Amendment: "In all criminal prosecutions, the accused shall enjoy the right to a speedy and public trial, by an impartial jury of the State and district wherein the crime shall have been committed, which district shall have been committed, which district shall have been previously ascertained by law, and to be informed of the nature and cause of the accusation; to be confronted with the witnesses against him; to have compulsory process for obtaining witnesses in his favor, and to have the assistance of counsel for his defense."

3. Fourteenth Amendment: "All persons born or naturalized in the United States, and subject to the jurisdiction thereof, are citizens of the United States and of the State wherein they reside. No State shall make or enforce any law which shall abridge the privilege or immunities of citizens of the United States; nor shall any State deprive any person of life, liberty, or property, without due process of law; nor deny to any person within its jurisdiction the equal protection of

the laws."

4. Article VI, Section 2: "all Treaties made, or which shall be made, under the Authority of the United States, shall be the supreme Law of the Land; and the Judges in every State shall be bound thereby, any Thing in the Constitution or Laws of any State to the Contrary notwithstanding."

5. Article VI, Section 4 of the Treaty of Friendship, Commerce And Navigation Between the Republic of China and the United States of America: "The nationals, corporations and associations of either High Contracting Party shall enjoy freedom of access to the courts of justice and to administrative tribunals and agencies in the territories of the other High Contracting Party, in all degrees of jurisdiction established by law, both in pursuit and in defense of their rights; shall be at liberty to choose and employ lawyers, interpreters and representatives in the prosecution and defense of their rights before such courts, tribunals and agencies; and shall be permitted to exercise all these rights and privileges, in conformity with the applicable laws and regulations, if any, which are or may hereafter be enforced by the duly constituted authorities, on terms no less favorable than the terms which are or may hereafter be accorded to the nationals, corporations and associations of such other High Contracting Party and no less favorable than are or may hereafter be accorded to the nationals, corporations and associations of any third country. Moreover, corporations and associations of either High Contracting Party shall be permitted to

exercise the rights and privileges accorded by the preceding sentence upon the filing, at any time prior to appearance before such courts, tribunals or agencies, of reasonable particulars required by the laws and regulations of such other High Contracting party without any requirement of registration or domestication."

6. 9th Cir. R. 3-6: "At any time prior to the completion of briefing in a civil appeal if the court determines:

... (b) that it is manifest that the questions on which the decision in the appeal depends are so insubstantial as not to justify further proceedings the court may, after affording the parties an opportunity to show cause, issue an appropriate dispositive order."

STATEMENT OF CASE

I. BEFORE THE CALIFORNIA JUDGES, PETITIONERS AND THEIR LAWYERS ARE LIKE "A JEW IN THE NAZI GERMANY"

1. Petitioners and their lawyers in both federal and state courts in California are "like a Jew in the Nazi Germany,"³ said Richard R. Hopkins, a Caucasian lawyer. See Transcript of Proceeding in Highbberger, Kakita, Spencer & Turner MAF Corp., et al v. Highbberger, et al, BC 059833 ("Chris" case), and Highbberger, Kakita, Spencer & Turner MAF Corp., et al v. Castellano, et al, BC 054981 ("Cast" case), in 1994.

³ A copy of all statements and quotations herein are attached in the trial courts' exhibits.

2. MR. HOPKINS: "I've been in practice for 19 years and I have never, never been treated the way I'm being treated in this case... every motion or every opposition made by Gibson & Dunn is the gospel truth and everything that I say is not." ID.

3. "As I stated the judges in the Los Angeles and Orange County areas are biased and discriminatory against Dr. Shieh. Their wilful deprivation of Dr. Shieh's constitutional and federal rights were/are on the grounds of Dr. Shieh's race, color, national origin and religion." Petitioners' Caucasian lawyer's declaration, dated May 13, 1995, ¶10.

4. Almost all, if not all, Los Angeles and Orange state judges, and policemen, and certain federal judges in Los Angeles are "controlled solely by" Gibson, Dunn & Cructure ("GDC") and O'Melvey & Myers ("OMM").

II. AT LEAST THREE CALIFORNIA JUDGES ADMITTED THAT THEY ARE MERELY PUPPETS OF THEIR BOSSES

1. Honorable Phillip E. Cox admitted: "This is an unusual case where they've extended it [vexatious litigant statute] to them when he has an attorney representing him. As I tell you, they're my bosses, and I can't overrule the[m]." See TP in Highbberger, Kakita, Spencer & Turner MAF Corp., et al v. David, et al in Orange County Superior Court ("SC"), case no. 70 64 39.

2. Kaufman conspired with Highbberger, et al to kidnap Petitioner in the Chinese New Year for seven days and to extort over

\$300,000.00 in February, 1994. Kaufman admitted that he was acting as a collection agency and is a real party in interest in his purported proceeding. See TP February 10, 14, 15, 16 and 17, 1994. However, in his last day of his court, Kaufman finally admitted that the California Vexatious Litigant statute, CCP §§391 et seq., "was for pro pers, and since the man [Petitioner] wasn't in pro per it did seem odd to me that motion was ever granted", "obviously my mind does question things, but things that happen, things that happen, I can't change them, so I'll let it go." Vol. 4 Request For Judicial Notice ("RJN") at 672-673 filed in this action.

3. KAUFMAN ADMITTED THAT:

1). "I'm not about to open a gate that has been defiantly -- or not defiantly, but absolutely closed to him by trial courts and the Court of Appeal. So he's been foreclosed out." Transcript of proceeding in Highberger, Kakita, Specner & Turner MAF Ct., et al v. Castellano, et al, BC 054981 ("Cast" case) and Highberger, Kakita, Specner & Turner MAF Ct., et al v. Highberger, et al, BC 059833 ("Chris" case) ("TP"), 2/94.

2). "... no, you're [plaintiffs' attorneys are] not in the position to give notice because you can't file anything." TP 2/10/94, at 23, lines 1-3.

3). "The present order with respect to the plaintiff or his attorneys being unable to file any documents." TP, 2/14/94, at 2, line 18-20. See RJN, no. 36, 1).

4). "he was not to file any new documents." (TP,

3/31/94, at 16, line 25-26).

5). "he is not authorized to file anything." (TP, 3/31/94, at 35, line 18-21).

4. In more than ten decisions, the corrupted and colluded judges of 9th Cir. always used the following languages in each and every decisions of petitioner's and petitioner's clients' cases (even if petitioner's clients are represented by lawyers): "No motion for reconsideration, rehearing, clarification, stay of the mandate, or any other submissions shall be filed or entertained" without payment of the judges of the 9th Cir. and the California courts. Appendix A.

III. THE HISTORY OF BRIBERY, CORRUPTION, COLLUSION, PERJURY, FORGERY OF
THE CALIFORNIA JUDGES AND FEDERAL JUDGES IN CALIFORNIA

1. Before, on and after August 12, 1993, judges Spencer, et al and their conspirators extorted petitioner to pay them bribes for at least \$260,000.00.

2. Before, on and after January 31, 1994, judges Spencer and their conspirators extorted petitioner to pay them additional bribes for \$154,000.00.

3. Pursuant to the criminal conspiracy between judges Armstrong, Turner, and et al in December, 1994⁴, they conspired with

⁴ On or about December 8, 1993, judge Armastrong or another judge in the same division publicly spoke that he would kidnap petitioner for ransoms and bribes. Kaufman and Highberger then carried out his conspiracy scheme.

Kaufman and Highberger to kidnapped Petitioner for seven days from February 10, 1994 (Chinese New Year) through February 16, 1994. All of them extorted over \$300,000.00 and robbed petitioner in the same period of time.

4. In April, 1994, the Crime Family attempted to kidnapped petitioner and all of his family members. The Crime Family admitted in their declaration that they had forcibly broken the house of petitioner and entered into the house for at least twice. Many files, documents and valuable items were stolen.

5. In or about early May 1994, the Crime Family extorted \$500,000.00 from petitioner.

6. In or about May, 1994, Patricia L. Grisinger of the State Bar of California extorted petitioner to pay \$1 million to the Crime Family, saying that she was acting on behalf of the Crime Family, otherwise she would put petitioner in an "inactive enrollment." She also delivered the "inactive enrollment form" to petitioner's house for petitioner's signature.

7. In or about October, 1994, Cydney Tabor Batchelor and Donald Robert Steedman of the State Bar of California further extorted \$1 million from petitioner. They specifically admitted that they were acting on behalf of David Eisen, William F. Highberger and other members of the Crime Family.

8. In November, 1994, William F. Highberger, Andrew Castellano and Barry Russell admitted that they had conspired with Cydney Tabor Batchelor and Donald Robert Steedman of the State Bar of California to secretly put petitioner in an involuntary inactive enrollment and to secretly enter default against petitioner without legally serving any application or complaint upon petitioner.

9. In or about November 1994, the Offices of Prosecutors commenced the criminal investigation against all members of the Crime Family. On or about August 2, 1995, William F. Highberger, C. Bernard Kaufman, V. Spencer, Andrew Castellano and others were indicted for kidnaping for ransoms, extortion, forgery, et al. Appendix E. They are facing sentencing now. Other members of the Crime Family are prosecuted.

10. Petitioner is a member of bars in many states, in federal courts and in Taiwan for over 20 years in good standing. He has never committed any crime. Nor is there any criminal charge pending against him. In his over 20 years law practice, no client has ever complained against him for any kind of professional misconduct.

11. On October 27, 1995, the judges, who are also prosecuted for their crimes, summarily affirmed the decision of the USDC in this action, and also summarily affirmed and summarily dismissed the other two pending appeals without reviewing the OB and ER pursuant to their

criminal corruption and collusion scheme.⁵

12. The warrants for their arrest will be issued if they failed to appear for the sentencing and the prosecution. Criminal supplemental civil complaints and independent civil complaints for declaratory and inductive relief as well as for damages were also filed against respondent and members of the Crime Family.

REASONS FOR GRANTING THE WRIT

Certiorari should be granted.

This Petition presents an issue for this court to resolve the issue of the first impression whether all California courts and the federal courts in California can completely, permanently and completely depriving petitioner and his lawyers all of their constitutional rights, which clearly violate the US Constitution and the FCN Treaty, and which is in the conflict with all decisions of all circuits.

This Petition also presents issues for this court to clarify whether Judges Robert R. Beezer, David R. Thompson and Thomas G. Nelson of the Ninth Circuit, who and their conspirators are indicted and prosecuted for felonies for the conspiracy to commit corruption, collusion, forgery, illegal competition and violation of anti-trust law,

⁵ The two appeals are 95-790 (Ebershoff case) and 95-55723. Accordingly, three petitions for certiorari are filed with this court on January 8, 1996 at the same time.

among other crimes, (1) have "so far departed from the accepted and usual course of judicial proceedings, or sanctioned such a departure by a lower court, so as call for an exercise of this Court's supervisory power," and (2) have "decided an important federal question in a way that conflict with relevant decisions of this Court" where they refused to disqualify themselves, covered up their and their conspirators' crimes, continued to be "in league with those who were bent upon abrogation of federally protected right," and summarily affirmed a lower court's decision (through another corruption and collusion) which dismissed Petitioner's \$300 million case without reviewing the opening brief and reply brief on the merits in furtherance of their criminal conspiracy, and such criminal and judicial misconduct are specifically prohibited by the holdings of Pulliam v. Allen, 466 U.S. 522, 539, 104 S. Ct 1970, 1979 (1984), and Mitchum v. Foster, 407 U.S. 225, 240, 92 S. Ct. 2151, 2161 (1972) (holdings that judges are not allowed to be "in league with those who were bent upon abrogation of federally protected rights.")

I. THE COMPLETE, PERMANENT AND UNLIMITED PROHIBITION OF PETITIONERS AND THEIR LAWYERS FROM FILING ANY THINGS CONFLICT WITH THE DECISIONS OF ALL CIRCUITS, VIOLATES THE CONSTITUTION AND TREATY

A. CONFLICT WITH ALL DECISIONS OF ALL CIRCUITS

(1) 1st Cir., Sire v. Gabriel, 748 F.2d 49 (1st

Circuit 1984) (holding that "We stress that where access to the courts is concerned, an injunction should be drawn as narrowly as possible").

(2) 3rd Circuit: Castro v. The United States of America 775 F.2d 399, (2nd Circuit 1985) (holding that "The court of appeals narrowly tailored the injunction to closely fit the specific vice encountered.") see also Brow v. Farrelly 994 F.2d. 1027, (3rd Circuit 1993)), Brow v. Farrelly 994 F.2d. 1027, (3rd Circuit 1993) (holding that "The broad scope of the District court's power is limited by two fundamental tenets of our legal system -- the litigant's right to due process and access to the courts"), In re Oliver 682 F.2d 443, (3rd Circuit 1982) (holding that imposing an injunction "is an extreme remedy, and should be used in exigent circumstances"), In re Oliver 682 F.2d 443, (3rd Circuit 1982) (holding that "Litigiousness alone will not support an injunction restricting litigant's filing activities").

(3). 2nd & 10th Circuit, Castro v. United States of America 775 F.2d 399, (2nd Circuit 1985) (holding that "If an injunction against future litigation issued under 28 U.S.C.A. 1651(a) were couched in overly broad terms, this impermissible infringes upon a litigator's right of access to the courts") see also Tripati v. Beaman 878 F.2d 351, (10th Circuit 1989)).

(4). 4th & 11th Circuit, Robinson v. Marion 879 F.2d 863, (4th Circuit 1989) (holding that "A court imposing such an injunction must be careful not to order conditions that effectively deny

access to the courts", see also Procup v. Strickland 792 F.2d 1069 (11th Circuit 1986)).

(5). D.C. Circuit, Urban v. United Nations 768 F.2d 1497, 1500 (D.C. Circuit 1985) (holding that "A court must take great care not to unduly impair a litigant's constitutional right of access to the courts").

(6) 5th Cir., Harrelson v. the United States, 613 F.2d 114 (5th Circuit 1980) (holding that "Orders enjoining future lawsuits are generally unnecessary because the doctrine of res judicata or collateral estoppel usually suffice to protect defendants from repetitious lawsuits").

However, the California courts , in practice, have absolutely, permanently, completely and unconditionally prohibit petitioner and all of his past, current and future lawyers from filing anything. The California Courts have never given petitioners and their lawyers any fair trial. All papers were prohibited from filing.

THIS COURT SHOULD UNIFY the above conflicting decisions.

B. VIOLATION OF THE U.S. CONSTITUTION

The judges of all California courts and all federal courts in California violated petitioner's and his lawyers' following rights:

1. First Amendment Right

"The right of petition is one of the freedoms protected by the Bill of Rights, and we cannot, of course,, lightly impute to Congress an intent to invade these freedoms." Id., at 138." CALIFORNIA MOTOR TRANSPORT CO. v. TRUCKING UNLIMITED, 510 (1972)⁶.

2. Right To Counsel⁷

"We agree and hold that a restriction on a defendant's right to consult with his attorney during a brief routine recess is constitutionally impermissible." UNITED STATES v. ALLEN, 542 F.2d 634 (1976)⁸.

⁶ "We conclude that it would be destructive of rights of association and of petition to hold that groups with common interests may not, without violating the anti-trust laws, use the channels and procedures of state and federal agencies and courts to advocate their causes and points of view respecting resolution of their business and economic interests vis-a-vis their competitors." CALIFORNIA MOTOR TRANSPORT CO. v. TRUCKING UNLIMITED, 510-511 (1972).

"Petitioners, of course, have the right of access to the agencies and courts to be heard on applications sought by competitive highway carriers. That right, as indicated, is part of the right of petition protected by the First Amendment." CALIFORNIA MOTOR TRANSPORT CO. v. TRUCKING UNLIMITED, 513 (1972).

⁷ With regard to right to counsel, see Fuentes v. Shevin (1972) 407 U.S. 67, 80, 92 S.Ct. 1983, 1984, 32 L.Ed.2d 556, 569-570; United States v. Ambrey DeWitt Allen (1976, United States Court of Appeals, Fourth Circuit) 542 F.2d 630; Madison Anderson v. Walter Sheppard, et al., (1988) 856 F.2d 741; Gladys Boddie et al. v. State of Connecticut et al., (1971) 401 U.S. 371, 91 S.Ct. 780; Powell v. Alabama, (1932) 287 U.S. 45, 53; 53 S.Ct. 55; 77 L.Ed. 158.

⁸ "It is so fundamental that there should never occur any interference with it for any length of time, however brief, absent some compelling reason." UNITED STATES v. ALLEN, 542 F.2d 633 (1976).

3. Right To Access To The Court⁹

"The fundamental constitutional right of access to the courts held to require prison authorities to assist inmates in the preparation and filing of meaningful legal papers by providing prisoners with adequate law libraries or adequate assistance from persons trained in the law." BOUNDS, CORRECTION COMMISSIONER, ET AL. v. SMITH ET AL., 817 (1977)¹⁰.

⁹ With respect to the deprivation of the right to access the Court, see Los Angeles County Bar Association v. Secretary of the State of California, et al., (9th Cir. 1992) 979 F. 2D 697, 705; Bounds v. Smith 430 U.S. 817, 821, 97 S.Ct. 1491, 1494, 52 L.Ed.2d. 72 (1977); California Motor Transp. v. Trucking Unlimited, 404 U.S. 508, 510, 92 S.Ct. 609, 611, 30 L.Ed.2d 642, (1972); Wolff, 418 U.S. at 579, 94 S.Ct. at 2986; Payne v. Superior Court (1976) 17 Cal.3d 908, 132 Cal. Rptr. 405; Aurelio Fregoso Jara v. Municipal Court of San Antonio Judicial District (1977) 137 Cal. 533, 68 Cal. App.3d 673.

¹⁰ "A combination of entrepreneurs to harass and deter their competitors from having "free and unlimited access" to the agencies and courts, to defeat that right by massive, concerted, and purposeful activities of the group are ways of building up on e empire and destroying another." CALIFORNIA MOTOR TRANSPORT CO. v. TRUCKING UNLIMITED, 515 (1972).

"We have no doubt that plaintiffs, even though they are inmates, have some first and fourteenth amendment rights to air their grievances and to have access to judicial procedures to redress them." TIMMERMAN v. BROWN Foard, 528 F.2d *815 (4th Cir. 1975).

"(1) that any carrier has the right of access to agencies and courts, within the limits, of course, of their prescribed procedures, in order to defeat applications of its competitors for certificates as highway carriers; and (2) that its purpose to eliminate an applicant as a competitor by denying him free and meaningful access to the agencies and courts may be implicit in that opposition." CALIFORNIA MOTOR TRANSPORT CO. v. TRUCKING UNLIMITED, 515 (1972).

"Due process of law prohibits a State from denying, solely because of inability to pay court fees and costs, access to its courts to indigents who, in good faith, seek judicial dissolution of their marriage." BODDIE v. CONNECTICUT, 371 (1971)

4. Right To Neutral and Detached Judges¹¹

"Because of the e fundamental need for judicial neutrality, we hold that the harmless error doctrine is inapplicable in cases where judicial bias and/or hostility is found to have been exhibited at any stage of a judicial proceeding." ANDERSON v. SHEPPARD, 856 F.2d 746 (1988)

"When a trial judge exhibits the open hostility and bias at the beginning of a judicial proceeding as was exhibited here, it follows that the judgment entered therein must be reversed." ANDERSON v. SHEPPARD, 856 F.2d 747 (1988)

The motions for disqualification were filed against judges many times on the different grounds. They were disregarded without any reason. Further these judges retaliate against Petitioner, despite the fact that they were indicted and prosecuted.

Section 455 provides broader grounds but does not specify the procedure for disqualification and is self-enforcing on the part of the judge. It requires a judge or magistrate to "disqualify himself in any proceeding in which his impartiality might reasonably be questioned" (28 USC §455(a) (emphasis added)); and it also requires disqualification

¹¹ In connection with due process rights to have cases determined by neutral and detached judges, see Madison Anderson v. Walter Sheppard, et al., (1988) 856 F.2d 741; Marshall v. Jerrico, Inc., (1980) 446 U.S. 238; 100 S.Ct. 1610; 64 L.Ed.2d 182.

where the judge or magistrate:

. Has a personal bias or prejudice against a party (28 USC §455(b)(1));

. Has personal knowledge of disputed evidentiary facts (28 USC §455(b)(1));

. Either before or after becoming a judge, was related to or connected with the case, the parties or their attorneys (28 USC §455(b)(2) & (3)); or

. The judge (or magistrate) or a relative has a financial interest in the subject matter in controversy or a party to the proceeding or any interest that would be substantially affected by the outcome of the proceedings (28 USC § 455(b)(4)).

Disqualification is required if a reasonable factual basis exists for doubting the judge's impartiality: "The inquiry is whether a reasonable person would have a reasonable basis for questioning the judge's impartiality, not whether the judge is in fact impartial." [In re Beard (4th Cir. 1987) 811 F2d 818, 827; Perston v. United States (9th Cir. 1991) 923 F2d 731, 734; see also Liljeberg v. Health Services Acquisition Corp. (1988) 486 US 847, 860-861]

The judge before whom the matter is pending "has a personal

bias or prejudice either against him or in favor of any adverse party."
[28 USC §144]

The judge must assume that the facts alleged are true, even if he or she knows them to be false. [See Berger v. United States (1921) 255 US 22]

The following cases deal with whether the judge's impartiality "might reasonably be questioned";

1). Shortly after granting summary judgment and awarding fees to Firm, Judge resigned from bench and joined Firm in practice of law. Held: Reversible error; Judge should have rejected employment offer or vacated rulings in question. [In re Continental Airlines Corp. (5th Cir. 1990) 901 F2d 1259, 1262]

2). In a criminal case, trial judge and U.S. Attorney were close friends who intended to vacation together with their families after the trial. Held: The close personal relationship could result in "reasonable question" about the judge's impartiality. [United States v. Murphy (6th Cir. 1985) 768 F2d 1518, 1538-1539]

3). Before his appointment to the bench, the judge had been "of counsel" to the law firm now representing Huges Aircraft. Although Huges was not a party to the wrongful death action pending before the judge, it could be sued for indemnification if the defendants lost the action. This presented a sufficient risk that the judge's impartiality "might reasonably be questioned by the public."

Disqualification was required. [Preston v. United States (9th Cir. 1991) 923 F2d 731, 734]

4). In extraordinary cases, bias for or against an attorney may be so continuing and "virulent" as to amount to bias for or against the party represented. [see Davis v. Board of School Commissioners (5th Cir. 1975) 571 F2d 1044, 1051]

5). The preconceived views may rise to the level of personal bias if it is established that the judge's mind is "irrevocably closed" on the issue as it arises in the context of a particular case...so that the judge is incapable of judging a particular controversy fairly on the basis of its own circumstances. [Southern Pacific Communications v. AT&T, 740 F2d at 911]

6). A negative bias against a party will disqualify "only if...of a kind or degree that a fair-minded person could not entirely set aside when judging certain persons or causes..." [United States v. Conforte (9th Cir. 1980) 624 f2d 869, 884-judge has said Conforte, a brothel owner, was "not good for Reno"]

7) Disqualification is much more likely to be required where the judge's negative attitude toward a party is somehow related to a suspect or invidious motive such as racial bias, or a dangerous link such as a financial interest. [See United States v. Conforte, supra, 624 f2d at 811]

8). The comment that the judge "would not intentionally discriminate" went to the ultimate merits of the action and would cause a reasonable person to question the judge's impartiality. [Roberts v. Bailer (6th Cir. 1980) 625 f2d 125, 127]

9). Judges or magistrates must recuse themselves if they have "personal knowledge of disputed evidentiary facts in the proceeding." [28 USC §455(b)(1)] The judge or such other lawyer was a material witness concerning the matter in controversy. [28 USC §455(b)(2)] Or, to the judge's knowledge, likely to be a material witness in the proceeding. [28 USC §455(b)(5)] [16:201.1-201.4] Reserved. When judges sitting on a case become aware of grounds for disqualification, they have a duty to recuse themselves under 28 USC §455. [E. & J. Gallo Winery v. Gallo Cattle Co. (9th Cir. 1992) 955 F2d 1327, 1343]

In light of facts stated herein, all of case law are applicable to judges of the federal courts. See various disqualification papers filed in this case and in other cases.

Judges Robert R. Beezer, David R. Thompson and Thomas G. Nelson of the Ninth Circuit, who and their conspirators are indicted and prosecuted for felonies for the conspiracy to commit corruption, collusion, forgery, illegal competition and violation of anti-trust law, among other crimes. Appendix E.

They have "so far departed from the accepted and usual course of judicial proceedings, or sanctioned such a departure by a lower court, so as call for an exercise of this Court's supervisory power." They have also "decided an important federal question in a way that conflict with relevant decisions of this Court."

They refused to disqualify themselves, covered up their and their conspirators' crimes, continued to be "in league with those who were bent upon abrogation of federally protected right." They summarily affirmed a lower court's decision (through another corruption and collusion) which dismissed Petitioner's \$300 million case without reviewing the opening brief and reply brief on the merits in furtherance of their criminal conspiracy, and such criminal and judicial misconduct are specifically prohibited by the holdings of Pulliam v. Allen, 466 U.S. 522, 539, 104 S. Ct 1970, 1979 (1984), and Mitchum v. Foster, 407 U.S. 225, 240, 92 S. Ct. 2151, 2161 (1972) (holdings that judges are not allowed to be "in league with those who were bent upon abrogation of federally protected rights.")

This Court should grant the petition.

C. VIOLATION OF THE FCN TREATY

Article VI, Section 4 of the Treaty of Friendship, Commerce And Navigation Between the Republic of China and the United

States of America ("FCN Treaty"): "The nationals, corporations and associations of either High Contracting Party shall enjoy freedom of access to the courts of justice and to administrative tribunals and agencies in the territories of the other High Contracting Party, in all degrees of jurisdiction established by law, both in pursuit and in defense of their rights; shall be at liberty to choose and employ lawyers, interpreters and representatives in the prosecution and defense of their rights before such courts, tribunals and agencies; and shall be permitted to exercise all these rights and privileges, in conformity with the applicable laws and regulations, if any, which are or may hereafter be enforced by the duly constituted authorities, on terms no less favorable than the terms which are or may hereafter be accorded to the nationals, corporations and associations of such other High Contracting Party and no less favorable than are or may hereafter be accorded to the nationals, corporations and associations of any third country. Moreover, corporations and associations of either High Contracting Party shall be permitted to exercise the rights and privileges accorded by the preceding sentence upon the filing, at any time prior to appearance before such courts, tribunals or agencies, of reasonable particulars required by the laws and regulations of such other High Contracting party without any requirement of registration or domestication." Appendix D.

Both California courts and the federal courts violate each and every sentence of the above Treaty.

II. THE SUBSEQUENT CRIMINAL INDICTMENT AND CRIMINAL

PROSECUTION OF THE STATE JUDGES AND FEDERAL JUDGES JUSTIFY THE MOTION FOR RECONSIDERATION OF AN UNSERVED MOTION FOR SUMMARY JUDGMENT AND UNSERVED ORDER DISMISSING THE CASES

Appendix A is true and correct copies of the criminal indictment and criminal prosecution of the state judges and federal judges who conspired to commit bribery, kidnapping for bribes, corruption, collusion, forgery, perjury and other crimes was submitted to USDC and 9th Cir. Such indictment and prosecution occurred after the cases were dismissed without serving a motion for summary judgment and without serving an order from the USDC.

"A convention enjoys the status of a treaty. (See American Trust Company v. Smyth (1957) 247 F. 2d. 149; Garcia v. Pan American Airways (1946) 295 N. Y. 852, 67 N. E.2d 257; cert. den. 329 U.S. 741, 67 S. Ct 79, 91 L. ED. 640." Dr. Ing. H.C.F. Porsche v. Superior Court, 177 C. R. 155, 156, fn. 1 (3d. Dist., 1981). "Noncompliance with the service of process requirements of the Hague Convention" voids the service and the order dismissing the cases. Id. That is another ground for a motion for relief or motion for reconsideration.

Here, the subsequent criminal indictment and criminal prosecution of the federal judge David Kenyon, Beezer, Thompson, and T. G. Nelson, as well as state judges Vaino Hassan Spencer, Edward Y. Kakita, Paul A. Turner, Orville A. Armstrong, et al for bribery, kidnapping for ransoms and bribes, corruption, collusion, perjury,

forgery, et al constitute a "new argument" and/or "new fact" for motion for reconsideration of the unserved motion for summary judgment and the unserved order of dismissal with prejudice. In Harsco Corp. v. Zlotnicki (3d., Cir., 1985) 779 F. 2d 906, the court held that the court must not to refuse to consider the subsequent evidence not available prior to the summary judgment).

In Bonner v. Circuit Court (8th Cir., 1975) 526 F 2d 1331, 1334; and in United States v. Allen, 542 F 2d 633 (1976), "The Court, however, has recognized that a judge is not absolutely immune from criminal liability, Ex Parte Virginia, 100 U.S. 339, 348-349, 25 L.Ed. 676 (1880), or from a suit for prospective injunctive relief, Pulliam v. Allen, 466 U.S. 522, 536-543, 104 S.Ct. 1970, 1977-1982, 80 L.Ed.2d 565 (1983), or from a suit for attorney's fees authorized by statute, id., at 543-544, 104 S.Ct., at 1981-1982." MIRELES v. WACO 112 S.Ct. 286, 1991.

The Supreme Court observed:

"Judges who would willfully discriminate on the ground of race or otherwise would willfully deprive the citizen of his constitutional rights, as this complaint alleges, must take account of 18 U.S.C. s 242¹²

¹² That section provides:

'Whoever, under color of any law, statute, ordinance, regulation, or custom willfully subjects any inhabitant of any State... to the deprivation of any rights, privileges, or immunities, secured or protected by the Constitution or laws of the United States, or to different punishments, pains or penalties, on account of such inhabitant being an alien, or by reason of his color, or race, than are prescribed for the punishment of citizens, shall be fined... or imprisoned....'

Whatever may be the case with respect to ... civil liability for willful corruption, see Alzua v. Johnson, 231 U.S. 106, 110--111 (34 S.Ct. 27, 28--29, 58 L.Ed. 142) (1913); ... we have never held that the performance of the duties of judicial, legislative, or executive officers, requires or contemplates the immunization of otherwise criminal deprivations of constitutional rights. ... On the contrary, the judicially fashioned doctrine of official immunity does not reach 'so far as to immunize criminal conduct proscribed by an Act of Congress' Gravel v. United States, 408 U.S. 606, 627, 92 S.Ct. 2614, 33 L.Ed.2d 583 (1972)." Bonner v. Circuit Court (8th Cir., 1975) 526 F.2d 1331, 1334. [Emphasis added, citations omitted].

"Immunity does not change the character of the judge's action or that of his co-conspirators" because "[a] state judge can be found criminally liable under #242." Dennis v. Sparks, 449 U.S. 24, 29, 101 S.Ct. 183, 187 and FN5 (1980)¹³.

The petition should be granted to resolve the conflict and to resolve the violation of the Constitution and the FCN Treaty.

III. THE DISTRICT COURT HAS JURISDICTION FOR DECLARATORY AND INJUNCTIVE RELIEFS, AMONG OTHERS, FOR JUDGMENTS RENDERED WITHOUT JURISDICTION

¹³ "The Court, however, has recognized that a judge is not absolutely immune from criminal liability, ... or from a suit for prospective injunctive relief, ... or from a suit for attorney's fees authorized by statute." MIRELES v. WACO 112 S.Ct. 286 (1991) [Citations omitted].

A. Orders Issued Without Jurisdiction

Petitioners Highberger, Kakita, Sepncer & Turner MAF Corp. ("HKST") and L. Shieh are residents in Taiwan. They have never served with an order to show cause from the California Court of Appeals. None have they ever authporized anyone to accept the service.

None of the issues decided by the Califoprnia court of Appeal was on the appeal. There was no appeal assigned to Div. One or Five of the CA Court of Appeal in the 2d Appelalte District ("CCA").

The CCA's three published cases and orders were issued without jurisdiction because the California Court of Appeal is a reviewing court and has no original jurisdiction. California Constitution, Article VI, § 11, Agricultural Labor v. Tex-Cal (1987) 43 C. 3d 696, 739 P. 2d 140, 238 C. R. 780. Sunray v. Federal Power (1957) 353 U.S. 944, 77 S Ct. 792)). "[I]n the 'clear absence of all jurisdiction." Mark HEIMBACH, v. VILLAGE OF LYONS (WAYNE COUNTY, NEW YORK), 597 F.2d 346 (2th Cir. 1979).

"[T]he trial judge properly applied the rule of Stump v. Sparkman, 435 U.S. 349, 98 S.Ct. 1099, 55 L.Ed.2d 331, in holeing that the acts perpetrated outside of Judge Harvey's courtroom and not then a part of his judicial functions were undertaken in the "absence of all jurisdiction." These acts involved the defendant's repeated communiccations to the press" Slyvester HARRIS v. Richard G. HARVEY, 605

F.2d 336 (7th Cir 1979).

"Moreover, even if the act is "judicial," judicial immunity does not attach if the judge is acting in the " 'clear absence of all jurisdiction.' " Stump v. Sparkman, 435 U.S., at 357, 98 S.Ct., at 1105 (quoting Bradley v. Fisher, 13 Wall. 335, 351, 20 L.Ed. 646 (1872))" MIRELES v. WACO 112 S.Ct. 286, 289. (1991).

"[W]hether a defendant judge is immune from suit is whether at the time he took the challenged action he had jurisdiction over the subject matter before him." Harold D. STUMP v. Linda Kay SPARKMAN and Leo Sparkman, 435 U.S. 349, 98 S.Ct. 1099, 1105 (1978).

"Where there is clearly no jurisdiction over the subject-matter any authority exercised is a usurped authority, and for the exercise of such authority, when the want of jurisdiction is known to the judge, no excuse is permissible." BRADLEY v. FISHER, 80 U.S. 335, 352 (1871).

B. Declaratory Relief & Injunctive Relief

"[Judges] are not immune from equitable and declaratory relief." TIMMERMAN v. BROWN Foard, 528 F.2d 812 (4th Cir. 1975).

"we have never held that judicial immunity absolutely insulates judges from declaratory or injunctive relief with respect to their judicial acts." SUPREME COURT OF VIRGINIA v. CONSUMERS UNION OF

UNITED STATES, INC., 446 U.S. 735, 100 S.Ct. 1975 (1980)

"Judge Lindsey ... would not be immune from an action for equitable relief." Frank SLAVIN v. Tim CURRY, 574 F.2d 1256, 1263 (1978).

"The justice is not immune, however, from suit for injunctive relief." Mark HEIMBACH, v. VILLAGE OF LYONS (WAYNE COUNTY, NEW YORK), 597 F.2d 347 (2th Cir. 1979). See also Gladys PULLIAM v. Richmond R. Allen and Jesse W. Nicholson, 466 U.S. 522, 104 S.Ct. 1970 (1984).

This court and all circuit have held that the district court has jurisdiction and the state judges are not immune "from a suit for prospective injunctive relief, Pulliam v. Allen, 466 U.S. 522, 536-543, 104 S.Ct. 1970, 1977-1982, 80 L.Ed.2d 565 (1983)" MIRELES v. WACO 112 S.Ct. 286, 1991 (1991).

The dismissal of this Action by the USDC and 9th Cir. prove their decisions conflict with the decisions of the above circuits and of this Court. The petition must be granted.

IV. CRIMINAL INDICTMENT AND CRIMINAL PROSECUTION ARE SELF-EVIDENT THAT STATE AND FEDERAL JUDGES ARE NOT NEUTRAL AND DETACHED

Petitioner's and all of his lawyers' right to neutral and

detached judges under the U.S. Constitution and the Treaty Between the ROC and USA is violated.

Appendix A is a clear evidence that the state judges Vaino Hassan Spencer, Edward Y. Kakita, Paul A. Turner, Jerold A Krieger, et al used California courts as instrumentalities for bribery, corruption, collusion, forgery, burglary and perjury and for the extortion against petitioner and his lawyers for \$1 million.

Appendix A also is a convincing evidence that the federal judges David Kenyon, Beezer, Thompson and T.G. Nelson, et al used their courts to cover up their bribery, corruption and collusion.

Theses state and federal judges were indicted and prosecuted and were disqualified through the filing the motions for disqualification.

The FCN Treaty, Article VI, Section 2 provides that: "The nationals, corporations and associations of either High Contracting Party ... shall be permitted to exercise all these rights and privileges, ... on terms no less favorable than the terms which are or may hereafter be accorded to the nationals, corporations and associations of such other High Contracting Party and no less favorable than are or may hereafter be accorded to the nationals, corporations and associations of any third country."

In Concrete Pipe & Const. Laborers Pen. Tr., 113 S. Ct 2264,

2277 (1993), this court held that "due process requires a 'neutral and detached judge in the first instance' ... one is entitled as a matter of due process of law to an adjudicator who is not in a situation 'which would offer a possible temptation to the average man as a judge ... which might lead him not to hold the balance nice, clear and true.'"

Over 10 decisions of the federal judges and over 100 decisions of the state judges as well as overwhelming evidence before the criminal courts and the Offices of the Prosecutors prove these judges are crooks, are dirty and are liars.

Second, a judge is not immune for actions, though judicial in nature, taken in the complete absence of all jurisdiction." MIRELES v. WACO 112 S.Ct. 286, 288. (1991).

"[A] judge is not immune for actions, though judicial in nature, taken in the complete absence of all jurisdiction. Id., at 356-357, 98 S.Ct., at 1104-1105; Bradley v. Fisher, 13 Wall., at 351." MIRELES v. WACO 112 S.Ct. 286, 288. (1991)¹⁴.

"In determining whether an action is 'judicial,' We consider the nature of the act and whether it is a 'function normally performed by a judge.' Stump v. Sparkman." MIRELES v. WACO 112 S.Ct. 286, 289. (1991).

"Moreover, even if the act is 'judicial,' judicial immunity does not attach if the judge is acting in the 'clear absence of all jurisdiction.' " Stump v. Sparkman, 435 U.S., at 357, 98 S.Ct., at 1105 (quoting Bradley v. Fisher, 13 Wall. 335, 351, 20 L.Ed. 646 (1872))" MIRELES v. WACO 112 S.Ct. 286, 289. (1991).

"[T]he trial judge properly applied the rule of Stump v. Sparkman, 435 U.S. 349, 98 S.Ct. 1099, 55 L.Ed.2d 331, in holding that the acts perpetrated outside of Judge Harvey's courtroom and not then a part of his judicial functions were undertaken in the "absence of all jurisdiction." These acts involved the defendant's repeated communications to the press" Slyvester HARRIS v. Richard G. HARVEY, 605 F.2d *336 (7th Cir 1979)¹⁵.

V. SUMMARY AFFIRMATION OF ALL USDC'S DECISIONS, AFTER COMMISSION OF BRIBERY, CORRUPTION, COLLUSION, ET AL., VIOLATE U.S. CONSTITUTION AND FCN TREATY

HKST believes that Judges Beezer, Thompson and Nelson committed bribery, corruption, collusion, et al. In fact, they are

¹⁵"We also agree that nonetheless Judge Harvey was acting under color of law by using the power and prestige of his state office to damage the plaintiff." "When the defendant Judge Harvey urged the discharge of Lieutenant Harris with racial overtones in out-of-court conversations ... he was acting as a functionary of the state * * *." Slyvester HARRIS v. Richard G. HARVEY, 605 F.2d *337 (7th Cir 1979).

"We agree with the district court that such an intentional tort inspired by racial animus and perpetrated under color of state law constitutes a denial of equal protection. Defendant has produced no said holding that such an action is not cognizable under Section 1983. Here the defendant was action under color of law, and the jury found that his racially motivated actions had injured plaintiff. Such a claim is clearly within the purview of Section 1983." "However, as the district court pointed out, plaintiff's claim was not for defamation but for an intentional deprivation of equal protection of the laws" "The jury's findings that defendant's actions were not only racially motivated but were of an action-intended-to-injure quality establish that they were neither fair comment nor the type of speech that is protected by the First Amendment." Slyvester HARRIS v. Richard G. HARVEY, 605 F.2d *338 (7th Cir 1979).

prosecuted for several crimes. Appendix C.

Without notice to Petitioners, and without an opportunity to be heard, the corruptive and collusive judges of 9th Cir. summarily affirmed all decisions of the USDC -- more than 10 appeals without notice and without the opportunity to be heard.

Both U.S. Constitution and the FCN Treaty mandate the notice to petitioners and an opportunity to be heard. The judges in the 9th Cir. are now subject to criminal prosecution and civil actions for their criminal commissions.

This Court shall not continue to close their eyes by allowing the largest corruption to go on in California.

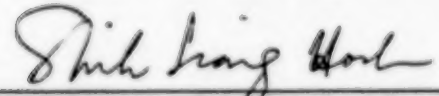
CONCLUSION

For the reasons set forth above, a writ of certiorari should issue to review the judgments and opinions of the Court of Appeals and the United States District Court in this matter¹⁶.

¹⁶ If this court elects not to address the issues presented in this writ at the present time, it is requested that the writ issue and that the matter be remanded to the Court of Appeals for redetermination in light of the facts that (1) the complete, permanent and unlimited restriction from filing any paper against petitioner and his lawyers is unconstitutional and in violation of the treaty, (2) subsequent criminal indictment and criminal prosecution of defendants and judges are new arguments for motion for reconsideration, (3) the California Court of Appeals has no original jurisdiction to declare petitioners vexatious litigants without proper service, (4) petitioner has right to neutral and detached judges, and (5) petitioner has due process right to notice and hearing.

DATED: January 19, 1996

Respectfully submitted,



Law Offices of Shieh Liang-Houh
Attorney For Petitioners

UNITED STATES COURT OF APPEALS
FOR THE NINTH CIRCUIT

SAY & SAY, a California Corporation,
Plaintiff,

and
L. SHIEH, et al.,
Plaintiffs-Appellants,

vs.
EDWARD Y. KAKITA, et al.,
Defendants-Appellees.

Before: BEEZER, THOMPSON and T.G. NELSON, Circuit Judges

Upon review of the opening brief and the record in this consolidated appeal, this court hereby summarily affirms the district court's March 3, 1995 orders denying appellants' motions to vacate the June 20, 1994 judgments. See Molloy v. Wilson, 878 F.2d 313, 315 (9th Cir. 1989) (denial of motion to vacate judgment reviewed for abuse of discretion); Backlund v. Barnhart, 778 F.2d 1386 (9th Cir. 1985) (denial of motion to vacate proper where no new arguments raised). All pending motions are denied.

No motions for reconsideration, rehearing, clarification, stay of the mandate, or any other submissions shall be filed or entertained in these closed dockets.

AFFIRMED.

PSMoCal 10/24/95/sg

FILED

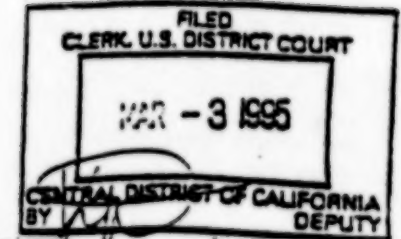
OCT 27 1995

GATHY A. CATTENSON, CLERK
U.S. COURT OF APPEALS

Nos. 95-55563 ✓
95-55566

DC# CV-93-06547-KN
Central California
(Los Angeles)

ORDER



UNITED STATES DISTRICT COURT
CENTRAL DISTRICT OF CALIFORNIA

SAY & SAY CORPORATION, et al.,

Plaintiffs

v.

HON. EDWARD Y. KAKITA, et al.,

Defendants

CV 93-6547 KN (SHx)

SAY & SAY CORPORATION, et al.,

Plaintiffs

v.

HON. JERROLD A. KRIEGER, et al.,

Defendants

CV 93-7310 KN (SHx)

Having considered Plaintiff's papers filed in support of his motions, the Court DENIES Plaintiff's motion for reconsideration, motion for discovery, and motion for leave to file second amended complaint.

IT IS SO ORDERED.

DATED: March 3, 1995

DAVID V. KENYON
UNITED STATES DISTRICT JUDGE

[English Translation¹]

CRIMINAL INDICTMENT

Parties	Names ²	Addresses & Telephone Nos.
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Criminal Defendant	1.	Vaino Hassan Spencer 300 South Spring Street Los Angeles, CA 90013 U.S.A.
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Female, USA³
Born: July 22, 1920

Criminal Defendant	2.	Edward Y. Kakita 111 North Hill Street Los Angeles, CA 90012 U.S.A.
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Male, USA
Born: May 8, 1940

Criminal Defendant	3.	William Foster Highberger 333 South Grand Avenue 49th Floor Los Angeles, CA 90071 U.S.A.
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Male, USA
Born: May 15, 1950

Criminal Defendant	4.	Ivy Tak Ling Yuen 1122 East Green Street Pasadena, CA 91106, U.S.A.
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Female, Mainland China
Born: July 8, 1960

Criminal Defendant	5.	Gerald Vernon Hollingsworth, Jr. 1122 East Green Street
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¹ In case the English translation defers from the Chinese version, the Chinese version shall control and govern.

² The Sex, Date of Birth and Place of Birth or Nationality of each criminal defendant are listed under each criminal defendant's portion infra.

³ It means either the place of birth or the nationality.

Pasadena, CA 91106, U.S.A.

Male, USA
Born: November 10, 1960

Criminal Defendant	6.	Andrew Castellano 1004 Arroyo Drive, No. 2 South Pasadena, CA 91030, U.S.A.
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Male, USA
Born: April 7, 1934

Criminal Defendant	7.	Wesley Allen Rusch 837 Traction Avenue Los Angeles, CA 90013-1840 U.S.A.
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Male, USA
Born: October 2, 1956

Criminal Defendant	8.	Francisca Noemi Araiza 3852 E. Colorado Blvd. Pasadena, CA 91107 U.S.A.
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Female, USA
Born: January 29, 1960

Criminal Defendant	9.	Paul A. Turner 300 S. Spring Street Los Angeles, CA 90013 USA
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Male, USA
Born: January 12, 1947

Criminal Defendant	10.	Jerold A. Krieger 111 N. Hill Street Los Angeles, CA 90012-3117 USA
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Male, USA
Born: December 12, 1943

Criminal Defendant	11.	David V. Kenyon, 312 N. Spring Street Los Angeles, CA 90012, USA
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Male, USA
Born: September 10, 1930

Criminal Defendant 12. C. Bernard Kaufman
24701 Guy Road
Hidden Hills, CA 911302
USA
Tel: 818-888-8896

Male, USA
Born: November 27, 1927

The Criminal Defendants⁴ herein have jointly and severally committed using false business records, using forged documents, kidnapping for ransoms, forgery and alteration of the stock certificates, extortion, blackmail and intimidation, defamation, using forged and altered evidence, burglary, larceny and theft, infringement of credit, revealing the secrets of another, unfair competition, et al. The Criminal Defendants are hereby indicted pursuant to the laws.

I. The Statement of the Background of Crimes Committed by the Criminal Defendants.

(1) This case was originally investigated by the Offices of the Public Prosecutors (1995, investigation no. 2669, originally assigned to Division "Yang" and now, in Division "Lai"). The Public Prosecutor recommended that this case be prosecuted by the Prosecutor herein. This court is hereby requested to transfer the investigation files from the Offices of Public Prosecutor to this court to avoid the repetition on the investigation of the same evidence.

(2) To become a lawyer and a judge in the United States is very easy. The annual passing rate is approximately 90% nationwide. Despite of the fact that there are many bad schools in the State of California, the annual passing rate for the bar examination in the State of California is approximately 77% (Evidence 1). Approximately one-third ("1/3") of the judges in the Los Angeles area are graduates of such bad schools. The law graduates of the top ten law schools can be hardly found. The legal and moral quality of the American lawyers and judges differs one from another. The American judges are elected and appointed through the large law firms and the special interest groups behind the scene. Most judges are used and controlled as the instrumentalities by the

⁴ Hereinafter individually cited as "CD" and collectively cited as "CDs".

large law firms. (American lawyer Haddix's testimony in the investigation files). The judges herein lost their independence completely. The judges or their clerks simply stamp or sign, without any change, of the decisions and orders prepared by the Caucasian lawyers, and become the civil and criminal decisions and orders pursuant to their purpose of "complete control" and "interest transfer". (American lawyer Andion's testimony in the investigation files). Caucasian judge Phillip Cox admitted: "This is an unusual case where they've extended it [vexatious litigant statute] to them when he [Shieh] has an attorney representing him. As I tell you, they are my bosses, and I can't overrule the[m]". (The transcript of the proceeding will be submitted later). The American Caucasian lawyer Richard R. Hopkins admitted that when Shieh and his lawyers are before the courts in the Los Angeles area, they are "like a Jew in the Nazi Germany". (Evidence 2). In the "Nazi court", "every motion or every opposition made" by Criminal Defendants herein "is gospel truth and everything that I say is not". (The transcript of proceeding ["TP"] will be submitted later). In this most outrageous and most ridiculous Los Angeles area, where there is no law at all, the Criminal Defendant no. 12 C. Bernard Kaufman directly and indirectly admitted in his last day of the proceedings before his retirement: "Everything we're saying here is going on the record, but obviously my mind does question things, but things that happen, things that happen, I can't change them, so I'll let it go". (TP will be submitted later). One who is corruptive, is in violation of the law, is in violation of the duty, is capable of committing crimes under the sun, "his words are true, when he will soon retire."

(3). The gross income of the Prosecutor often reaches several million United States Dollar per year because he is licensed to practice law in Taiwan and in the US, and because he received the J.D. and J.S.D. degrees from the Yale University. The Criminal Defendants are those who became bad judges and bad lawyers through the above process. They engaged in unfair competition and in destroying Prosecutor's clients' basis. They conspired with judges

⁵ The above languages are quoted "word by word" from the transcript of the proceeding in Highberger, Kakita, Spencer & Turner Mafia Ct., et al v. David, et al dated December 7, 1993 in the Superior Court of the State of California for the County of Orange.

⁶ The word by word quotation of the transcript of proceeding in Highberger, Kakita, Spencer & Turner MAF Corp., et al v. Highberger, et al and Highberger, Kakita, Spencer & Turner MAF Corp., et al v. Castellano, et al, dated April 22, 1995; at 8, lines 15-17.

⁷ Word by word quotation from the TP in the above two cases, dated April 22, 1995, at 14, lines 11-14.

to "corrupt, violate the law, violate the duty" and to extort Prosecutor to pay them the alleged US\$1 million bribes or illegal money. They conspired with each other to commit blackmail, extortion, kidnapping for ransoms, and put Prosecutor in the "false lights" completely. The winning rate was 100% (the Affidavit of Percy Chien will be submitted later) or near 100% when the Prosecutor represented his clients in the United States. Nevertheless, the Criminal Defendants committed forgery, forged and altered the evidence, forged the courts' decisions and lied to the world that (1) Prosecutor has no attorney representing him (in fact, the Criminal Defendants have never seen Prosecutor in the court representing himself, and the Prosecutor was represented by lawyers) and (2) Prosecutor's cases are completely without merits in law and in fact. Criminal Defendants corrupted with judges not to review the civil and criminal cases of the Prosecutor and his clients, to automatically dismiss their cases or to automatically rule against Prosecutors and his clients (Affidavit of Percy Chien will be submitted later). In order to take away all of Prosecutor's clients, Criminal Defendants conspired with each other and completely prohibited Prosecutor from filing the "complaints", "cross-complaints", "motions" and "appeals", et al. (Evidence nos. 2 to 5). Those who did not abandon Prosecutor's cases were either punished or sentenced to jail without any factual and legal basis. (See the testimonies of Hopkin [sic]¹ and Andion before the Offices of the Public Prosecutors). Criminal Defendants "secretly" forged documents and put Prosecutor in an involuntary inactive enrollment ["IIE"] without serving Prosecutor properly and legally in order to take away all of Prosecutor's clients. Criminal Defendants then shared the profits from the taking of Prosecutor's clients' money and benefits.

II. The Facts and Evidence of the Crimes

(1) Using False Business Records

1. Criminal Defendant Highberger recorded false information that Prosecutor is not a member of the United States court (alleged Counsel ...) in his business documents in Evidence nos. 24, 25 and 23. Criminal Defendant Highberger also made such false statement before the federal court (See Evidence 8, lines 22 to 24). In fact, Prosecutor was admitted to practice before the United States District Court for the Central District of California (This can be proved from Evidence 9, page 2, the Certificate of Admission. The fact of the admission is a public record. Anyone can obtain such information). Criminal Defendant Highberger further recorded false information in Evidence 5, line 10 and Evidence 6 and 7, line 9 that the Prosecutor's papers submitted to the court

¹ Due to the clerical error, the word "Hopkin" should be "Haddix". Both words are very similar when translated into Chinese.

as "without merit and frivolous." The federal court did not use such words in making that decision. Criminal Defendant Highberger knows the allegations are not true, but nevertheless recorded such falsity in his business records and distributed them to Taiwan (this can be proven from Evidence nos. 5, 6 and 7, the last page, the names and addresses on the service list) in order to injure Prosecutor. Criminal Defendant Highberger is suspected to commit Article 216 of the Criminal Code.

2. Pursuant to Evidence 10, page 2, lines 9-11, Criminal Defendant Highberger deceived that Prosecutor represented Criminal Defendant Highberger without his authorization, et al. In fact, Prosecutor has never stated that he represented this criminal, how could the issue of authority come into play? In Evidence 27, Criminal Defendant Highberger falsely recorded in his business records that his pleadings were mailed to the Prosecutor in Taiwan by his secretary Geri D. Hollins on April 12, 1995 with postage fully prepaid (See Evidence 10, page 3, lines 8 and 18 and page 4, lines 6-7). Evidence 10 is a copy of the envelop which shows that the mailing date was in fact April 18, 1995 and the postage is insufficient (at least US\$6.00 is required for the international mail with such weight). This is another evidence of using false business records.

3. Criminal Defendant Highberger and other Criminal Defendants in their business records submitted to the American courts recorded that Prosecutor was litigating his cases without lawyers (i.e., In Pro Per, see Evidence 2, Criminal Defendant Highberger recorded such words in many places in that pleading). The fact that Prosecutor was represented by lawyers in all his cases was proved by the court's files (the counsel for the Prosecutor is shown on the upper left corner of the pleadings in Evidence 11, 21) and by the declarations of Richard R. Hopkins and James L. Andion. On May 12, 1995, Lance Haddix, Esq. also testified the same and confirmed the truth of the declarations of Richard Hopkins and James L. Andion. (Evidence 12). Accordingly, the false business records recording that Prosecutor was in pro per and was satisfied with all requirements under the §391(b) of the California Code of Civil Procedure ["CCP"] for a "vexatious litigant" are contrary to the facts. Criminal Defendant knew that the above are false, but nevertheless wilfully, maliciously, and intentionally recorded such falsities in their business records. Criminal Defendant used such false business records and used the State Bar of California ["SBC"] and courts as their instrumentalities (Criminal Defendant Spencer delivered such false business records to the State Bar of California, and in turn delivered the same to Taiwan) in order to injure and harass Prosecutor (this can be proved from the fax and envelop in Evidence 13). It is clear that Criminal Defendants have committed the above crimes.

4. Moreover, Honorable Judges Dickran Tevrizian and Mariana R. Pfaeizer of the United States District Court for the Central District of California had never declared Prosecutor as a vexatious litigant. At that time, there was no vexatious litigant statute, rule or law under the federal system. This fact can be proved from Evidence 4 and 21 which consist of the decision of the federal court and from the testimonies of Lance Haddix and James L. Andion before the Offices of the Public Prosecutors. Under American case law, a plaintiff can legally refile the same claims in the state court when the federal court declines to exercise the supplemental jurisdiction and dismisses the state claims (Evidence 18). When the court dismisses a case for lack of prosecution, plaintiff can legally refile the same claims (Evidence 19). Prosecutor's clients' and relatives' cases are not his cases in proper. This can be proved from the testimonies of President Wang of the Ching Luen Enterprises Co., Ltd. and President Chien of the PSJ Corp., as well as Evidence 4, 23. It is more than clear that Criminal Defendants wilfully, maliciously and intentionally used forged documents, used forged and altered evidence and used false records.

5. Criminal Defendants conspired with each other to circulate the above false documents in the United States and in China [Taiwan] in order to injure Prosecutor's reputation. Criminal Defendants further conspired to put Prosecutor in an involuntary inactive enrollment ["IIE"] (Evidence 19). Criminal Defendants conspired with the judge of SBC to throw away Prosecutor's pleadings, to refuse to file such pleadings or enter them into evidence, but to enter the "default judgment" against Prosecutor. Judge [Robbins] admitted such crime. A copy of such false records were delivered to the non-parties Steedman and Batchelor (cc: Donald R. Steedman Cydney Batchelor), who in turn delivered such false records to Criminal Defendant Highberger, et al, and Criminal Defendants in turn delivered the same to places in Taiwan. As a consequence, Prosecutor is unable to continue to represent his clients on the ongoing cases and to represent his new clients in Taiwan and all places in the world. The court should punish Criminal Defendants with such crimes in accordance with the laws.

(2). Criminal Defendants Jointly And Severally Used The Forged Documents

1. Criminal Defendants nos. 3, 4, 5, 6, 7 & 8 were in proper (see the upper left corner of Evidence 3 and other evidences to be submitted later) and did not spend any money for the attorneys fees. They conspired with Criminal Defendants nos. 1, 2, 10 & 12 Kaufman, et al to forge the documents, to forge and alter evidence, to record false information, to request Prosecutor to pay them approximately US\$1 million attorneys fees and to post US\$47 million attorneys fees as bond as a condition to process the case. Criminal

Defendants used such documents to put Prosecutor in an IIE (Evidence 4, last page, Evidence nos. 19, 20). The above ridiculous decisions are void and null in their face and thus, no effect upon Prosecutor. However, Criminal Defendants conspired with SBC and judges to form a group for the purpose of criminal extortion for ransoms so as to collect all severally million US\$ of profits and benefits per year and to discriminate against Prosecutor on the basis of race, color and national origin. The Superior Court of the State of California ["SC"] and the United States District Court for the Central District of California ["USDC"] (Criminal Defendants nos. 2, 10, 11 & 12) expressly stated that they would not review Prosecutor's cases and would rule against Prosecutor anyway. The Court of Appeals of the State of California, [Second Appellate District] ["CCA"] (Criminal Defendants Nos. 1 & 9) expressly stated that they would not review any of Prosecutor's appeals and writs of mandate/prohibition. They ordered the lower courts to dismiss all Prosecutor's cases (Evidence 4, the second to the last page) unless over US\$300,000 (which is, in fact, bribes since no attorneys fees were spent) is collected from Prosecutor before the dismissal of Prosecutor's cases. The Supreme Court of the State of California ["CSC"] has never accepted Prosecutor's cases for review. The above facts were admitted by Criminal Defendants 1, 2, 9, 10 & 12, were testified by Haddix and Andion, attorneys at law, were proved by the declaration of Richard R. Hopkins and by the affidavit of Haddix signed before the notary public of the Taipei District Court (Evidence 4, 12, California judges ruled against Prosecutor even before reviewing the pleadings). Criminal Defendants corrupted with judges in order to deprive Prosecutor of all his constitutional and federal rights and to take away Prosecutor's clients and money.

2. Criminal Defendants no. 3 Highberger and no. 5 Hollingsworth forged other parties' pleadings for the signature of the federal judges (Evidence 21 proves that Highberger and Hollingsworth did not have authority to represent others; In evidence nos. 5, 6, 7, first page, line 18, the circled portions prove that they forged such authorities, the same as Evidence 23).

3. Other Forged Documents Will Be Submitted Later.

(3) Defamation

1. All Criminal Defendants repeatedly defamed Prosecutor as a "vexatious litigant" (Evidence 3, 4 and 10, page 2, Evidence 19, page 3).

2. Criminal Defendant no. 3 Highberger defamed Prosecutor as "the corporation's alter ego", and defamed Prosecutor using "corporate shell to sue." (Evidence no. 19, pages 2 & 3 the circled

parts).

3. Once the documents stated in this case were delivered to the California government (Evidence 19), and federal government (Evidence 20), the federal courts or California courts (some evidence in this case), the documents become "public records" that anyone can copy and review the documents. Criminal Defendants wilfully and intentionally published, circulated and used the documents in Taiwan. As a matter of fact, Criminal Defendants have published, circulated and used such false documents and forged documents in Taiwan. (Evidence 13 & 19, page 3, the upper left corner).

(4). Larceny And Theft

1. Criminal Defendant no. 3 Highberger and Criminal Defendants nos. 4 and 5 admitted that they conspired with a lawyer in Taiwan to steal Prosecutor's documents (including the file copy of the bills issued to the First Commercial Bank and the Medium Business Bank of Taiwan). This can be proved from Criminal Defendant Highberger's declaration and the documents stolen (Evidence 23 and 24).

2. Other stolen documents and goods are under investigation.

(5). Extortion And Blackmail For Ransoms

1. Criminal Defendants conspired with each other to extort and coerce Prosecutor to pay them over \$450,000.00 bribes or illegal ransoms. Mr. Hopkins can prove it.

2. Criminal Defendants used the "disciplinary proceeding of the State Bar Court of the State Bar of California" as an instrumentality to extort, coerce, blackmail and intimidate Prosecutor and his lawyers to pay them and judges approximately US\$1 million as bribes or illegal ransoms. Because Prosecutor has not yet paid, they put Prosecutor in IIE. (Evidence 19). The lawyers of Prosecutors are subject to disciplinary proceedings. Mr. Haddix testified this before the Offices of Public Prosecutors.

(6) Offenses Against Credit And Offenses For Revealing Business Secret

As well, Criminal Defendants' above crimes constitute the

offenses against Prosecutor's credit and reputation under Article 313 of the Criminal Code, and the Offenses for revealing business secret under Article 316 of the Criminal Code as well as the violation of the Laws Governing the Unfair Competition And Anti-trust.

(7) Kidnapping For Ransoms And Conspiracy For Kidnapping For Ransoms

1. Except Criminal Defendant no. 11, all Criminal Defendants conspired with each other and kidnapped Prosecutor for seven days from February 10, 1994 (Chinese New Year) through February 16, 1994.

2. Third party conspirator Batchelor (the instrumentality of Criminal Defendants) admitted on March 9, 1995 that she contacted with a lawyer in Taiwan to follow Prosecutor's whereabouts in order to kidnap Prosecutor.

(8) Forged and Altered Stock Certificate

It appears that Criminal Defendants forged, altered stock certificates of the "Highberger, Kakita, Spencer & Turner MAF Corp." or "Say & Say" and falsely stated that the corporation is "owned and controlled solely" by Prosecutor.

(9). Used Forged, Altered Evidence.

It appears that Criminal Defendants have used the above forged, altered evidence.

III. The Crimes Were Committed In Taiwan And Taiwan Has Jurisdiction Over These Crimes

(1). Criminal Defendants nos. 3, 4 & 5 admitted that they conspired with a lawyer in Taiwan, stole Prosecutor's documents, defamed Prosecutor and delivered the false business records and forged documents to that lawyer in Taiwan (Evidence nos. 4, 19 & 20) and others (Evidence 25). The place of stealing and the place of using the false business records and forged documents are in Taiwan.

(2) All evidences stated herein were used by Criminal Defendants in Taiwan. The envelopes and the declarations of Highberger are supporting evidences. (Evidence nos. 13 and 24).

(3). Criminal Defendants wilfully and intentionally refused to keep these documents as "confidential", but revealing them as "public documents", as well as circulated and used in the public (including Taiwan). (Evidence nos. 4, 5, 6, 7, 10, 19).

(4). Criminal Defendants extorted, blackmailed and intimidated

Prosecutor in Taiwan through international telephones, international faxes and international mail, all reached Taiwan.

(5). The commission of the kidnapping for ransoms is punished by death under the Law Governing the Punishment Against Robbery And Related Crimes, and is punished by death, life imprisonment or at least seven years imprisonment. Both are the cases which have the least punishment of three years under Article 8 of the Criminal Code. The courts of the Republic of China ("ROC") has jurisdiction. Criminal Defendants conspired with a lawyer in Taiwan to attempt to kidnap Prosecutor, in the second time, the place of crimes is also in Taiwan. The court of the ROC has jurisdiction. (Article 4 of the Criminal Code).

(6). Criminal Defendants forged, altered the stock certificates, the court of the ROC have jurisdiction. (Subsection 4 of Article 5, and Article 201 of the Criminal Code).

(7). Criminal Defendants conspired each other and shared their crimes performances. Their commissions of crimes are continuous and repetitive. They shall be punished for all crimes conspired. (See Evidence 25, our country's precedents and the resolutions of the meetings).

IV. The judges of our country are the best among thousands of people. Their legal and moral quality is far better than American judges. Handling the foreigners' and Caucasians' criminal cases shall be the same as handling the domestic criminal cases, without any exception. In order to protect the judicial independence and our country and to protect our people's rights and privileges, Prosecutor respectfully requests this court to punish Criminal Defendants so as to punish the illegality and to support the public trust to our judiciary. Respectfully submitted to the Offices of Public Prosecutors [sic]⁹ of the Taipei District Court.

Evidence: See the Evidence List

Dated: August 2, 1995

⁹ Due to clerical error, it should be the "Criminal Court."

年 月 日 時 分	字 號	刑 事 狀 況	新 台 幣		美 元		通 達 代 理 人 姓 名 住 址	通 達 電 話 號 碼
			金 額 或 價 額	類 別	單 位	數 量		
文 號	號	情 理	當 分 別 註 明 或 一 並 註 明 或 註 明 或 註 明	姓 名	出 生 年 月 日	職 業	住 居 所 或 當 前 所 在 地 址	
		一、被告	Valno Hessen Spencer (亞 賓塞)	女	00- 二二九		美國 300 SOUTH SPRING STREET, LOS ANGE LES, C.A. 90013 U.S.A	
		二、被告	EDWARD Y. KA KITA (卡其達)	男	00- 八五九		美國 111 NORTH HILL S TREET, LOS ANGELE S, C.A. 90012 U.S.A	
		三、被告	WILLIAM FOST ER, HIGHBERG ER (海柏格)	男	一〇三 五五九		美國 333 SOUTH GRAND AVENUE, LOS ANGEL ES, C.A. 90071 U.S.A	

第一頁

四、被告	Ivy Tak Lin	女	四九		大陸	1122 Green Stree	
	e Yuen (艾蓮)		〇七			t Pasadena C.A. 9	
			〇八			1106	
						U.S.A.	
五、被告	Gerald Varno	男	四九		美國	1122 East Green	
	Hollingswort		一一			Street Pasadena,	
	h (馬西·霍廷)		一〇			CA 91106 USA.	
	〔斯 威爾〕						
六、被告	Andrew Caste	男	三三		美國	1004 Arroyo Driv	
	llano (安諾 魯諾)		〇四			e. No. 2. S. Pas	
	魯諾·卡諾諾		〇七			adena	

10	1	1	1	1	ICA9101 USA	1
11	1	1	1	1	1	1
七	報告	Wesley Allen	男	四五	美國	837 Traction Av
		Rusch (美國)	1	1	1	venue LA, CA
		1122 (位)	1	1	1	U.S.A.
八	報告	Francisca No	女	四九	美國	3852 E. Colorado
		lemi Araiza	1	1	1	Blvd, Pasadena
		「佛蘭西斯卡」	1	1	1	ICA 91107 USA
		ID	1	1	1	1
		1122	1	1	1	1
九	報告	Paul A. Turn	男	三三	美國	300 S. Spring St
		ler (美國)	1	1	1	reet LA, CA90013

1111

11	1	1	1	1	1	USA
十	報告	Jerold A. Kr	男	三三	美國	111 N. Hill Stre
		lieger (美國)	1	1	1	let LA, CA 90012-
		ID	1	1	1	13117
		1	1	1	1	U.S.A.
十一	報告	David V. Ken	男	九	美國	312 N. Spring St
		lyon (美國)	1	1	1	reet LA, CA90012
		1122	1	1	1	U.S.A.
十二	報告	C. Bernard Kr	男	六	美國	507 Bethany Rd.
		laufman (美國)	1	1	1	Burbank, CA 9150
		1122	1	1	1	14 USA

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7. 矮生

David S. Eisen.

520 S. Grand Avenue.

8th Floor

Los Angeles, CA 90071

U.S.A.

生日：民國45年2月18日 (1956)

男，美國

8. 死敵寒

Erik F. Stidham

住址同上

生日：民國53年12月25日 (1964)

男，美國

9. 苦得因

Alfred T. Goodwin

121 Spear Street

P.O.Box 193939

San Francisco, CA 94105

U.S.A.

男，美國

10. 猿精

Charles E. Wiggins

50 W. Liberty Street, #950

Reno, NV 89501 U.S.A.

生日：民國16年12月3日 (1927)

男，美國

11 · 死泥

Joseph T. Sneed

住址同九

男，美國

12 · 不耳

Cecil F. Poole

住址同九

生日：民國2年7月25日（1913）

美國

13 · 薄狼泥踢

Melvin Brunetti

住址同上

美國

14 · 遍雜

Robert R. Beezer

住址同上

男，美國

15 · 湯不散

David R. Thompson

住址同上

生日：民國19年12月26日（1930）

男，美國

16 · 泥耳散

Thomas G. Nelson

住址同上

男，美国

[B:\WU\96\1\3]j1

[illegible]

大學地位 年 月 日 午 時 字 號 健

姓名	性别	出生年月日	职业	住址	电话	备注
(一) 羅賓·H·吉爾伯特 (Robin H. Gilbert)	男			3050 K. STREET, N.W., Washington D.C., U.S.A.		
(二) 麥克·R·克 (Michael R. Kershaw)	男			3050 K. STREET, N.W., Washington D.C., U.S.A.		
(三) 查理·波士 (Charles Patrick)	男			五十四號七樓 台北中華路 八四一十一號		
(四) 佛里·波士 (Fred Puglisi)	男			333 S. Hope St., 48th Fl. Los Angeles.		
(五) 馬克·馬爾馬 (Marc Marmar)	男			CA. 90071 USA 2121 Avenue of Stars, 19th Fl. Los Angeles.		
(六) 彼得·H·馬森 (Peter H. Mason)	男			CA. 90067 USA 865 SOUTH FIGUER OA STREET TWENTY NINTH FLOOR LOS ANGELES, CAL IFORNIA 90017-25 17 USA		